IN THE ARKANSAS SUPREME COURT

PHILLIP CARTER AND ANTOINETTE CARTER-HARRIS, AS LEGAL GUARDIANS OF ANTOIN HARRIS, AN INCAPACITATED PERSON

APPELLANTS

v. **No. CV-23-100**

ENTERGY ARKANSAS, INC.

APPELLEE

On Appeal from the Circuit Court of Jefferson County, Arkansas

The Honorable Robert H. Wyatt, Jr.

APPELLEE'S PETITION FOR REVIEW

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Seven months after declaring its caselaw on the known-or-obvious-hazard rule "well established," and recognizing that "it is not the role of this court to adopt a new exception," *Rodriguez v. Chakka*, 2024 Ark. App. 224, at 9, 687 S.W.3d 592, 598, the Court of Appeals adopted a new exception in a 6-3 opinion with no adversarial briefing on the issue. As a result, the known-or-obvious-hazard rule is eliminated from Arkansas law anytime a duty of care is sourced in an ordinance or statute. This Court should grant review under Ark. S. Ct. R. 2-4(d)(ii) & (iii) to correct this legal error that breaks from Arkansas Supreme Court precedent. In support, appellee Entergy Arkansas, Inc. states:

1. This is a negligence case stemming from Antoin Harris's running into a guy wire he knew about and had safely navigated for four years, and the hazard of which he readily appreciated. (RP 127-129, 131, 150, 153).

2. The known-or-obvious-hazard rule has long been fixed in this Court's precedents. See, e.g., *Duran v. Southwest Ark. Elec. Coop.*, 2018 Ark. 33, at 10, 537 S.W.3d 722, 728 ("[T]he duty owed to an invitee is satisfied when the danger is either known or obvious to the invitee."); *Jenkins v. Int'l Paper Co.*, 318 Ark. 663, 670, 887 S.W.2d 300, 304 (1994) ("any duty owed…ends if the plaintiff knows of the danger"). For years, "[i]n Arkansas, the only recognized exception to the open-and-obvious-danger rule is when a business invitee is forced, as a

practical matter, to encounter a known or obvious risk in order to perform his job." *Rodriguez*, 2024 Ark. App. 224, at 9.

3. But with its opinion in this case, the Court of Appeals has now created a second exception to the rule that defies decades of Arkansas law.

4. The Court of Appeals held that Entergy's duty to Harris arose from a section of a Pine Bluff ordinance obligating Entergy to comply with the National Electrical Safety Code (NESC) in constructing, operating, and maintaining its electrical facilities in Pine Bluff. Neither party mentioned the NESC or Section 3 of the ordinance in their briefs—the Court raised this source of duty sua sponte.

5. The Court of Appeals then held that because the source of the alleged duty was an ordinance, the known-or-obvious-hazard rule did not apply to Harris's collision with the guy wire—even though Harris repeatedly admitted that he "knew from past experience that the guy wire was there." See, e.g., Resp. to Pet. for Reh'g at ¶ 3; Opinion at 5–7, 10–11.

6. In creating this new exception, the Court of Appeals followed not this Court's precedents, but a Restatement comment—comment d. to Restatement (Second) of Torts § 343A—that has never been cited, let alone adopted, by this Court. Opinion at 10. (For a discussion of how comment d. operates, see Ex. A, Pet. for Reh'g at 7.)

7. Notably, no party advanced or briefed this new exception to the known-or-obvious-hazard rule. *Cf. United States v. Sineneng-Smith*, 590 U.S. 371, 375 (2020) ("In our adversarial system of adjudication, we follow the principle of party presentation."); *Greenlaw v. United States*, 554 U.S. 237, 242 (2008) ("[W]e rely on the parties to frame the issues for decision and assign to courts the role of neutral arbiter of matters the parties present.").

8. Perhaps most importantly, the Court of Appeals provided no rationale for abandoning the known-or-obvious-hazard rule in these circumstances. See Opinion at 10–11. Why, for example, should the plaintiff's knowledge of a hazard defeat liability when the source of the duty is common law, but not when the source is an ordinance or statute? The principle behind the known-or-obvious-hazard rule is that there is no duty to warn the plaintiff of something he already knows. AMI Civ. 1104 cmt. (citing *Jenkins*, 318 Ark. 663). Whether that "something" is a violation of a common-law duty or a statutory one is beside the point.

9. Even if comment d were Arkansas law, it would not apply on this record, which lacks evidence of any ordinance or statutory violation by Entergy. See Ex. A at 9. Entergy provided the requisite conspicuous marker at ground level (RP 248), but at the time of the accident, it was shoved halfway up the guy wire. Harris failed to introduce proof as to how or when this occurred.

10. Entergy asks the Court to grant review to correct the Court of Appeals' new unbriefed exception not found in Arkansas law.

Respectfully submitted,

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CERTIFICATE OF COMPLIANCE

The undersigned counsel certifies that this Petition for Review complies with Administrative Order No. 19 and Administrative Order 21, Section 9.

CERTIFICATE OF SERVICE

The undersigned counsel certifies that a copy of the Petition for Review is being filed via the court's eFlex system on January 27, 2025, which will provide notice to counsel of record, and that she will mail a copy to the circuit court.

By: /s/ Kimberly D. Young

Kimberly D. Young